

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR AUGUST 28, 2026 AT 8:30 A.M.**

**3. M-CV-0094658 FRAT ORDER OF EAGLES ROSEVILL AERIE 1582 v.
ALNAJJAR, MUANMAR**

This tentative ruling is issued by the **Honorable Stephen L. Mock**. If oral argument is requested, it will be heard on **August 31, 2026 at 8:30 a.m. in Department 44** by the Honorable Stephen L. Mock.

Motion to Set Aside Default and Default Judgment

Defendant Mustafa Alnajjar moves to set aside default and default judgment pursuant to Code of Civil Procedure sections 473(d) and 473.5. Plaintiff opposes the motion.

Defendant's motion is supported by his declaration, which includes, "[SIGNATURE PAGE FOLLOWS]." (Mustafa Alnajjar Decl., at p. 2:18.) However, no declaration follows (only the one included at the end of the proposed responsive pleading). As the information is unsupported by any declaration signed under penalty of perjury pursuant to Code of Civil Procedure section 2015.5, defendant's motion is unsupported by any evidence.

The court, on its own motion, continues the motion to set aside default and default judgment to be heard on **September 29, 2026 at 8:30 a.m. in Department 1**. By September 4, 2026, defendant shall file and serve an amended declaration and ensure it is signed under penalty of perjury pursuant to Code of Civil Procedure section 2015.5. No other briefing is permitted.

Motion for Sanctions

Plaintiff's motion for monetary sanctions against defendant Mustafa Alnajjar and defendant's counsel of record Seth Wiener pursuant to Code of Civil Procedure section 128.7 is likewise continued to **September 29, 2026 at 8:30 a.m. in Department 1** be heard together with the motion to set aside default and default judgment. No further briefing is permitted.